

		complaint should not be dismissed for failure to serve the defendant as required by Rule 3.110 on July 6, 2026 at 1:30 p.m. in Dept. C24. Any evidence submitted in response to the OSC is required to be filed 10 court days prior to the hearing. The clerk shall give notice.
312	<i>Bradford Place Santa Ana II Homeowners Association vs. Cruz</i>	Plaintiff Bradford Place Santa Ana II Homeowners Association's motion for publication of summons and complaint is DENIED without prejudice. There is insufficient evidence Plaintiff took reasonable steps to determine the current residence of defendant Adrian Cruz (Defendant), including inquiry as to whether his travel outside the country was permanent or temporary, and/or inquiry (or attempts to serve Defendant) at the property at issue in this litigation. (<i>Watts v. Crawford</i> (1995) 10 Cal.4th 743, 749, n. 5 [the term "reasonable diligence" denotes "a thorough, systematic investigation and inquiry conducted in good faith by the party or his agent or attorney"]; see also Judicial Council comments to Code of Civ. Proc. § 415.50.) If his current address is known, there is insufficient evidence of attempts to serve Defendant by substitute service or mail coupled with acknowledgment of receipt. (Code Civ. Proc., § 415.50 [service by publication requires first attempting service through another authorized manner]; see also Code Civ. Proc., § 415.20 § 415.30.) Furthermore, there is insufficient evidence of the existence of a cause of action against Cruz or that Cruz claims an interest in real or personal property subject to the court's jurisdiction. (Code Civ. Proc., § 415.50, subd. (a).) Counsel's one-line sentence in his

		declaration is without proper foundation and insufficient. (<i>Islamic Republic of Iran v. Pahlavi</i> (1984) 160 Cal.App.3d 620, 627; see also Declaration of Michael R. Perry ¶ 7.) Plaintiff shall give notice.
313	<i>Russell vs. Tsumpes</i>	Before the Court is a Motion to Quash Service of Summons filed by defendant Textron Aviation Inc. (TAI). The motion is GRANTED. A defendant may move to quash service of summons on the ground of lack of jurisdiction of the court over him or her. (Code Civ. Proc., § 418.10, subd. (a)(1).) The court may dismiss without prejudice the complaint in whole, or as to that defendant, when dismissal is made pursuant to Section 418.10. (Code Civ. Proc., § 581(h).) Here, TAI asserts the court lacks personal jurisdiction as it relates to Plaintiff's complaint. Defendant submits evidence showing its principal place of business is in Kansas, it designs and manufactures aircraft in Kansas and not in California, it produces manuals for general aviation aircraft in Kansas, and not in California, and it has not targeted California for specific advertising. (Goeken Decl. ¶¶4-8) "When a nonresident defendant challenges personal jurisdiction the burden shifts to the plaintiff to demonstrate by a preponderance of the evidence that all necessary jurisdictional criteria are met. [Citation.] This burden must be met by competent evidence in affidavits and authenticated documentary evidence. An unverified complaint may not be considered as an affidavit supplying necessary facts. [Citation.]" (<i>Ziller Elecs. Lab GmbH v. Superior Ct.</i> (1988) 206 Cal.App.3d 1222, 1232-1233.)